COLORADO COURT OF APPEALS
2 East 14th Avenue
Denver, CO 80203

District Court, Teller County, Colorado
Judge Scott A. Sells
Case Number: 2023CV30021

Appellants:
WOODLAND PARK SCHOOL DISTRICT; WOODLAND PARK SCHOOL DISTRICT BOARD OF EDUCATION; MIKE BATES, in his official capacity as Board Member; DAVID ILLINGWORTH II, in his official capacity as Board Member; CASSIE KIMBRELL, in her official capacity as Board Member; SUZANNE PATTERSON, in her official capacity as Board Member; and DAVID RUSTERHOLTZ, in his official capacity as Board Member,

v.

Appellee:
ERIN O'CONNELL.

COURT USE ONLY

Case Number:
2023CA514

Attorneys for Appellants:
Scott E. Gessler (28944),
sgessler@gesslerblue.com
Geoffrey N. Blue (32684),
gblue@gesslerblue.com
Gessler Blue LLC
7350 E. Progress Place, Suite 100
Greenwood Village, CO 80111
Phone: (720) 839-6637

EMERGENCY MOTION TO STAY

INTRODUCTION

The Appellants (collectively referred to as the "School District") seek a stay of the district court's order requiring them to hand over video footage from security cameras under the Colorado Open Records Act ("CORA"). A stay is proper because the School District is likely to prevail on appeal. This is an issue of first impression, and the district court failed to apply CORA's plain language that allows the School District to withhold video recordings that reveal security arrangements. Instead, the court erroneously focused on activities recorded by the video cameras, rather than how video recordings showed the capabilities and limitations of the security cameras.

In addition, the School District faces irreparable damage. Absent a stay, it must unavoidably hand over video recordings showing the capabilities and vulnerabilities of its security arrangements. This is a very serious matter, in light of recent school violence – including an instance in which a shooter mapped out school surveillance. Once produced, details about the School District's security camera system will be in the public domain.

The School District seeks an expedited ruling on a stay because of the district court's compressed timeline. Following a hearing on March 22, 2023, district court issued its Order on Friday, March 24, 2023, setting forth the grounds

for its decision. And the district court requires the School District to hand over video footage no later than 1:30 p.m., Wednesday, March 29, 2023. The speed of the proceedings below necessitate a rapid resolution of this Motion.

The record consists of the pleadings along with the transcript of a short hearing that took place on March 22, 2023. The School District has included all pleadings, but the transcript is unavailable based on the short timeline.

PROCEDURAL HISTORY

On March 3, 2023, Plaintiff Erin O'Connell submitted an Application to Show Cause under C.R.S. § 24-72-204(5)(a), to require the School District to produce video recordings from four security cameras. Two days later, on March 5, 2023, the Court ordered a hearing to take place no later than March 22, 2023. Because counsel for the School District was out of the country from March 9 to 19, 2023, the hearing was set for March 22, 2023.

The parties submitted briefs on March 20, 2023. The hearing was limited to brief testimony from and cross examination of Ms. O'Connell, after which the Court ruled from the bench that: (1) School District security footage constituted a public record under the CORA, regardless of its content, because it was "created by cameras funded by public funds in a public building", and (2) School District

security camera footage did not qualify as a proper exception that revealed security arrangements under C.R.S. § 24-72-204(2)(a)(VIII)(A). The Court tasked Plaintiff's counsel with drafting an order consistent with the Court's ruling from the bench. The Court inquired as to whether Plaintiff's counsel would need additional time to draft the order due to potential spring break plans or the necessity of acquiring a transcript.

Plaintiff's counsel filed the proposed order on the evening of March 23, 2023, but did send the proposed order to Defendants' counsel as required by C.R.C.P. 121 § 1-16(1). The Court immediately adopted the proposed order the next morning at 8:45 am, Friday, March 24, 2023. The Court ordered that the School District hand over video recordings no later than 1:30 p.m., Wednesday, March 29, 2023.

LEGAL STANDARDS

This Motion meets the formal requirements of C.A.R. 8, which requires a movant to "show that moving first in the district court would be impracticable," or alternatively "show that the district court has denied an application, or has failed to afford the relief requested, and state the reasons given by the district court for its action."[1] Here, the District Court's order of March 24, 2023 stated:

[1]C.A.R. 8(a)(2)(A).

> The Court declines to extend the stay further [from Saturday, March 25, 2023 to Wednesday, March 29, 2023] and directs that the Defendants, if they seek further stay, may seek a stay from the Court of Appeals. A further stay is DENIED by this Court because the right to the recording will lose meaning given the long time that passes in the appeal process and because the recording sought to be protected does not include content that impacts school security."

Because the district court refuses to allow a stay beyond March 29, 2023, and has directed the School District to apply to the Court of Appeals, a request to this Court is proper under C.A.R. 8(a)(2)(A).

Next, a motion for stay must include:

(1) "the reasons for granting the relief requested and the facts relied on."[2] The School District's reasons and factual basis are explained below;

(2) "originals or copies of affidavits or other sworn statements if the facts are in dispute."[3] Attached to this Motion are declarations (as authorized by C.R.S. § 13-17-104);and

(3) "relevant parts of the record."[4] A transcript of the March 22, 2023, hearing is not available. The School District has included all substantive pleadings in this matter.

[2]C.A.R. 8(a)(2)(B)(i).
[3]C.A.R. 8(a)(2)(B)(ii).
[4]C.A.R. 8(a)(2)(B)(iii).

Finally, undersigned counsel certifies that the School District's trial counsel provided notice to the Plaintiff on Monday morning, March 27, 2023.[5]

With respect to the substantive legal standards, twelve years ago a panel of this Court set forth the test in *Romero v. City of Fountain*.[6] That opinion adopted the four-part test articulated by the U.S. Supreme Court in *Nken v. Holder*,[7] which considers the following factors:

(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits;

(2) whether the applicant will be irreparably injured absent a stay;

(3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and

(4) where the public interest lies.[8]

After reviewing federal circuit court opinions applying this standard, *Romero* adopted the Sixth Circuit's approach, which relaxes the showing of a likelihood of success on the merits. Instead of requiring a "strong showing" of success, the *Romero* court held that "the probability of success that must be

[5]See C.A.R. 8(a)(2)(C).
[6]*Romero v. City of Fountain*, 307 P.3d 120 (Colo. App. 2011).
[7]*Nken v. Holder*, 556 U.S. 418, 426, 129 S. Ct. 1749, 1756 (2009).
[8]*Romero v. City of Fountain*, 307 P.3d 120, 122 (Colo. App. 2011).

demonstrated is inversely proportional to the amount of irreparable injury plaintiff will suffer absent the stay. Simply stated, more of one excuses less of the other."[9] To be sure, a movant must show more than "the mere possibility of success on the merits," but the sliding scale comparing the likelihood of success against irreparable harm allows a court to tailor its ruling to "the circumstances of the particular case"[10] and in this case balance the harm to the school district against the public interest in video recordings.[11]

ARGUMENT

1. The School District will succeed on appeal because the district court failed to properly follow the CORA's plain language.

This factor considers the likelihood of success on appeal.[12] Here, the School District need not show a high probability of success, because under the second factor it can show substantial, irreparable injury absent a stay, as discussed below. But the School District can nonetheless show a very high likelihood of success on the appeal, for two reasons.

[9] *Id.* at 123. (internal quotation omitted).
[10] *Id.*
[11] See *Id.* at 124.
[12] *Romero*, 307 P. 3d. at 125.

A. The district court failed to apply the CORA provision that protects security arrangements.

The district court failed to apply or consider the proper statutory test under C.R.S. 24-7-204(2)(a)(VIII)(A), which protects security arrangements. In denying the plaintiff's request, the School District argued that it was not required to produce video footage from security cameras, because production of video footage would reveal "[s]pecialized details of . . . security arrangements . . . including the specific engineering, vulnerability, detailed design information, protective measures, [] or system operational data of such assets that would be useful to a person in planning an attack on critical infrastructure but that does not simply provide the general location of such infrastructure."[13] This statutory provision has three elements: (1) the documents in question must reveal specialized details of security arrangements; (2) the security arrangements must be for "critical infrastructure"; and (3) the footage does not simply provide the general location of the critical infrastructure.

The district court failed to apply this test. Instead, it based its ruling solely on whether people within the video footage themselves constituted a security threat, not whether the production of video footage revealed security arrangements.

[13]C.R.S. § 24-72-204(2)(a)(VIII)(A).

For this Court's convenience, the entirety of the district court's opinion on this issue follows:

> The Court finds the Defendants' claim of security concerns to be a conclusory statement. This was on the night of a school board meeting with three Board members and the superintendent applicant walking down a hall that they know is recorded on video. An argument that this impacts security or the safety of the school is not credible. The Court does not find Defendants' argument is credible or plausible that disclosure of the requested recordings would effect [sic] school security. The requested recordings, unlike these examples, shows footage after a School Board meeting where the public was permitted. It is not credible to the Court that the actual recordings involve a security concern. Any person, student, teacher, or parent may walk through these areas and the cameras are in plain view. The Court finds that the CORA exception at § 24-72- 204(2)(a)(VIII)(A), C.R.S. does not apply.[14]

Whether the video showed three board members walking down the hall with a candidate for superintendent is irrelevant to the analysis under Section 204(2)(a)(VIII)(A) of the CORA. Likewise, whether the "actual recordings involve[d] a security concern" find no place under the statute. Rather, the proper test is whether security camera footage revealed "specialized details of security arrangements."

Properly applied, Section 204(2)(a)(VIII)(A) shows that the School District properly withheld footage from security cameras. First, it should be axiomatic that security cameras are "security arrangements." Indeed, the very purpose of security

[14]Order on Complaint and Application for an Order to Show Cause Under § 24-72-204(5), C.R.S. with expedited setting under § 24-72-204(5)(b), C.R.S. ("Order"), March 24, 2023, pp. 5-6.

cameras is to monitor school grounds and respond to (or prevent) threats of harm or violence. It should likewise be axiomatic that the capabilities, configurations, settings, and usage of security cameras are "specialized details" of those security arrangements. And showing exactly how the cameras work – by turning over video footage that shows the cameras' capabilities– reveals these specialized details. Absent actual video recordings, one can only guess about the School District's security arrangements. But if a person can see exactly what a security camera can do, then that person understands the specialized details of the School District's surveillance capabilities and limitations.

Second, the School District buildings are "critical infrastructure." Although the phrase "critical infrastructure" is not defined within CORA, under federal law "critical infrastructure" includes the "Educational Facilities Subsector," which includes "all public and private K-12 schools."[15]

Third, the "general location" of the School District's buildings are already well known, and security camera footage does not "provide the general location"

[15] See, e.g., Department of Homeland Security and Department of Education, "Education Facilities Sector-Specific Plan," pp. 1-2 (2010), https://www.hsdl.org/?view&did=736907, last visited March 27, 2023; see also Cybersecurity and Infrastructure Security Agency, "Government Facilities Sector," https://www.cisa.gov/topics/critical-infrastructure-security-and-resilience/critical-infrastructure-sectors/government-facilities-sector, last visited March 27, 2023.

of the critical infrastructure. Rather, camera footage provides specialized details of a school security system.

Although the district court incorrectly characterized the School District's argument on security arrangements as "conclusory" – which means "expressing a factual inference without stating the facts or reasoning on which the inference is based"[16] – in fact the School District set forth detailed facts and reasoning over two pages in its written briefing before the district court,[17] as well as during oral presentation. In short, the School District properly raised this issue before the district court and provided facts to show that security camera footage indeed reveals security arrangements.

The fact that the School District uses a network of security cameras to ensure safety within schools should, standing alone, resolve this issue. Nonetheless, to the extent this commonsense approach is disputed, Tim Petruna, the Safety Compliance Supervisor of the Woodland Park School District, affirms that production of security camera footage will reveal details of the School District's security arrangements, including camera capabilities, configurations, and

[16]"Compulsory," Garners Modern English Usage, p. 238, Oxford University Press (5th ed. 2022).

[17]Brief in Opposition to Plaintiff's Application to Show Cause ("Defendants' Brief"), March 20, 2023, pp. 3-4.

other details.[18] He describes in detail how school security will be seriously compromised.

Unfortunately, requiring the School District to justify and describe its security camera operations in the district court proceeding has already revealed sensitive security arrangements. Namely, in defending its refusal to turn over video recordings, the School District admitted that it did not have any recordings whatsoever for two camera locations requested by Plaintiff, because it did not have a security camera in one location that the Plaintiff requested, and that another camera had malfunctioned.[19] In short, this very CORA proceeding has publicly revealed vulnerabilities in the School District's security arrangements.

And separately, this admission also nullifies Plaintiff's claim that release of video cannot reveal security arrangements, because security cameras are in "plain sight." Where no camera existed in a particular location, logically no camera could be within in plain sight. And visually seeing a camera "in plain sight" cannot reveal the vulnerabilities of that camera, such as a malfunction.

Sadly, the School District's fears about revealing security camera surveillance recordings is not an idle concern. Even today, on March 27, 2023,

[18]Declaration of Tim Petruna, March 27, 2023, *passim*.

[19]Defendants' Brief, n. 1, p. 2. In addition, at the March 22, 2023, hearing, the district court extensively questioned counsel for the School District on this point.

while counsel was drafting this brief, national news broke of a school shooting in Nashville, Tennessee. There, the Nashville police chief was quoted as saying the police department "determined that there were maps drawn of the schooling detail of surveillance entry points" by the shooting suspect.[20] In short, there are recent, tragic examples that those seeking to do harm have mapped out a school's security camera system in order to maximize their ability to harm and kill others. This underscores the commonsense recognition that the details of a security camera system within a school qualifies as an important "security arrangement." And the School District – like school districts across Colorado – is mindful of some of the well-planned, tragic shootings that have occurred in Colorado schools.

B. The district court did not analyze the content of the video recordings to determine whether they were public records.

Whether a record is a "public record" under CORA and thus open to inspection must be "content-driven."[21] For example, even though emails are specifically included in the definition of a "writing" under CORA, not all emails of elected officials are "public records" open to inspection.[22] Likewise, in order to be

[20] "Nashville school shooting: 6 killed including 3 students, shooter dead," FoxNews, March 26, 2023, https://www.foxnews.com/us/nashville-school-shooting-6-killed-including-3-students-shooter-dead, last visited March 27, 2023.

[21] *Denver Pub. Co. v. Bd. of County Commissioners of County of Arapahoe*, 121 P.3d 190, 199 (Colo. 2005).

[22] *Id.* at 200–01.

a public record, a writing must be "made, maintained, or kept for a particular reason: for use in the exercise of functions required or authorized by law or administrative rule."[23]

The School District argued at length that any discussion shown in the requested videotape recordings did not constitute a public record under the above balancing test. Importantly for purposed of appeal, the district court failed to even engage in this analysis. This district court's failure to apply the controlling standards to determine whether a document is a public record is reversible error, and the School District is highly likely to prevail, because the district court failed to even apply the proper legal standards.

2. If forced to hand over video footage, the School District must unavoidably reveal security arrangements and simultaneously forfeit its right to a meaningful appeal.

Here, the School District faces two irreparable harms: first, production of video recordings will reveal sensitive security arrangements to the public, since the School District cannot undo the damage to school security. Second, it will effectively eliminate the School District's right of meaningful appeal. Again, the School District cannot reverse the video release.

[23] *Denver Post Corp. v. Ritter*, 255 P.3d 1083, 1089 (Colo. 2011).

As discussed above, once a person sees what type of footage a security camera produces, that person can readily see the capabilities and limitations of that camera. This is a straightforward proposition. And once that footage is released into the public domain, the School District has no ability to limit or protect the video footage. Anyone can learn about the School District's vulnerabilities. And the School District must produce the same records to anyone else who asks for them. Recent tragedies at other schools – including the chilling knowledge that one school shooter recently mapped out a school's surveillance system – make it readily foreseeable that someone could easily take advantage of this security vulnerability. Indeed, the School District submits that it would be reckless to allow members of the public the opportunity to map out school surveillance capabilities and vulnerabilities, in light of the known threats to children and staff in schools. Unfortunately, no amount of money can compensate for weakening school security.

The harm faced by the School District is magnified by the number and pattern of CORA requests. Plaintiff's request is not an isolated request for limited footage from a single camera. Rather, the request runs concurrently with a larger pattern of multiple requests, including other requests for video footage. Here, the Plaintiff requested video footage from four cameras (one of which did not exist), and immediately following her request the District received yet another request

that included the exact same security camera video footage.[24] During the past 12 months, the District has received over 400 CORA requests, and two people who account for 117 requests (one of whom is the Plaintiff) have recently turned their attention to seeking video footage, in the form of three recent requests.[25] Under the district court's controlling legal standards, the School District must disclose video footage for all three requests, plus any additional requests. And the School District will likely continue to face more than one request per calendar day – with an increasing volume of video footage requests – especially if this Court allows the door for video recordings to remain open. A deluge of CORA requests aimed at the School District is not hypothetical. The deluge already exists, and the district court's decision will deeply compromise school security, absent a stay to allow this Court to provide clear guidance.

Second, as a legal matter, disclosure makes the School District's appeal meaningless. *Romero* itself recognized that a meaningless appeal created irreparable harm, although in that case the Court downplayed the harm because the Plaintiff himself had already disclosed much of the information he sought to keep out of the public domain.[26] Here, the School District faces the same irreparable

[24]Declaration of Miles Tuttle, March 27, 2023, ¶ 3.
[25]Tuttle Decl., ¶ 2, 4-5.
[26]*Romero* at 124.

harm identified in *Romero*, but unlike the movant in *Romero* the School District has consistently refused to disclose video footage, so as to prevent the Plaintiff and others from learning about school security arrangements.

3. Delay will not harm the Plaintiff.

Any delay caused by a stay will not harm plaintiff. To be sure, the Plaintiff seeks video recordings immediately. But she cannot articulate any harm.

In its Order the district court stated that the video footage "will lose meaning given the long time that passes in the appeal process."[27] As outlined above, Plaintiff herself drafted this order, and this is the only harm she was able to articulate. But it is difficult to understand how a video recording can "lose meaning" over time. Books, movies, and other writings do not lose meaning over time, even over the course of centuries. And likewise, a video recording that has no audio component will not lose meaning over the course of months. The School District will, of course, retain the video footage to ensure no spoilation, and the passage of time will not degrade video quality.

Furthermore, the School Board is prepared to cooperate with an expedited briefing schedule in order to minimize delay. The School Board is concurrently filing a Notice of Appeal with this Motion, in order to accelerate the appellate

[27] Order at 7.

timeline. And to the extent that a lengthy appellate process may cause harm to Plaintiff, the School District respectfully asks for an expedited review of this matter.

4. The public interest requires courts to protect security arrangements of critical infrastructure, particularly in light of repeated, tragic violence in Colorado schools.

The CORA contains two elements relevant to this Motion. First, there is a strong presumption for public disclosure. Second, the statute contains strong protections for security arrangements of critical infrastructure. Both are important public interests. For purposes of this Motion, however, the proper framework is a temporary delay in the release of documents (if Plaintiff prevails), balanced against the affirmation that release of video records will permanent damage to school security, (if the School District prevails). The School District urges this Court to err on the side of caution, to protect children and staff. This balance is much different than other cases, such as *Romero*, where the interest articulated by the movant was to prevent public embarrassment or loss of reputation. By contrast, there is a widespread and urgent public interest in preventing disclosure of the School District's security arrangements.

Lastly, the School District has not identified any precedent applying Section 204(2)(a)(VIII)(A), and so there is a strong public interest in ensuring that

Colorado district courts apply the proper tests involving these weighty public matters. A stay is important to ensure that the district court receives thorough, well-considered direction in applying the proper CORA standards. In other words, courts should get it right the first time, regardless of the outcome of the School District's appeal.

CONCLUSION

For these important reasons, the School District requests that this Court stay production of video recordings until resolution of the appeal and provide such other relief as just and proper.

Respectfully submitted this 27th day of March 2023,

s/ Scott E. Gessler
Geoffrey N. Blue
Gessler Blue LLC

CERTIFICATE OF SERVICE

I certify that on this 27th day of March 2023, the foregoing was electronically served via e-mail or CCES on all parties and their counsel of record:

s/ Joanna Bila, Paralegal